

In T.339/06, the board held that the admissibility of a request first submitted in appeal proceedings and relating solely to an independent claim which, although within the scope of the opposition, had not been considered in the first-instance decision had to be decided on in the light of whether it could also have been submitted earlier. In exercising its discretion not to admit the auxiliary requests at issue in this case, the board considered, in particular, that it would have to rule on a completely different case if they were introduced on appeal (see also similar case T.38/13).

In T.1705/07 the appellant for the first time in the appeal proceedings submitted requests which no longer contained the process claims on which the contested decision was based, but which now only comprised product and use claims which related to fundamentally different subject-matter. Consequently, admitting them into the proceedings would mean that the matters in dispute were fundamentally different from both a substantive and a patent-law point of view, so that the upshot would normally be a remittal to the department of first instance. As a result, the proceedings would last longer and the public would be deprived of legal certainty regarding the validity of the contested patent, which would not be compatible with the principle of procedural economy.

In T.144/09, about one month before oral proceedings in opposition proceedings the patent proprietor added a new feature into the requests. During the oral proceedings the opposition division raised an objection under Art. 123(2) EPC concerning the inclusion of this feature. The patent proprietor did not file any amended or auxiliary requests. Thus, the patent was revoked. With the statement of grounds of appeal the patent proprietor filed new requests without feature in question. The board stated that a request can be held inadmissible under Art. 12(4) RPBA 2007 when added subject-matter held unallowable during proceedings before the opposition division is not removed at least by way of an auxiliary request filed in those proceedings, but only by way of a request filed during the appeal proceedings (see also R 11/11 regarding the appellant's petition for review on this matter; see also T.154/12). In T.848/09 (see chapter V.A.5.11.3g) below) the board distinguished the case before it from T.144/09.

In T.1125/10 the appellant had not reacted to the obviously relevant documents filed shortly before the oral proceedings (before the opposition division) or attended those proceedings. The board considered that the only reason it was now compelled to decide on the matter at first and final instance or else remit the case to the department of first instance was that the appellant's conduct had prevented the opposition division from taking a reasoned decision on the subject-matter of claims amended in the light of those documents. The board therefore decided not to admit the appellant's new requests into the proceedings (citing T.1067/08). See also T.2154/13, which likewise concerned non-attendance at oral proceedings.

In T.936/09 the board stated that under the EPC, there is no legal obligation for the patent proprietor to take an active part in opposition proceedings. However, the patent proprietor is not free to present or complete his case at any time that he wishes during the opposition or opposition appeal proceedings. If a patent proprietor chooses not to respond in substance at all to the opposition or chooses not to complete his submissions at the stage of the first-instance proceedings, but rather presents or completes his case only in the

notice of appeal or the statement setting out the grounds of appeal, then he will need to face the prospect of being held to account for such conduct by the board when, for example, exercising its discretion under Art. 12(4) RPBA 2007. See also T 1335/14, T 1400/11, T 2066/18.

In T 23/10 the board stated that a patentee withholding claim requests in opposition proceedings is precluded from having those requests admitted on appeal, since the patentee would otherwise be permitted to disadvantage the adverse parties by conducting appeal proceedings contrary to its actions before the opposition division (endorsed in R 13/11). See also T 1165/10 (deliberately foregoing opportunity to file new requests and subsequently attempting to reopen the opposition proceedings before the board held to be an abuse of procedure) and T 872/09 (deliberate choice not to defend auxiliary requests).

In T 1467/13, in the opposition proceedings the patent proprietor had sought maintenance on the basis of new requests that were now, on appeal, its main and first to eighth auxiliary requests. In its ninth to thirteenth auxiliary requests, filed with its statement of grounds of appeal, a feature had been deleted. Their subject-matter was thus, with no apparent justification, outside the scope of the proceedings as defined at first instance. Based on Art. 12(4) RPBA 2007, it therefore should have been filed in the first-instance proceedings.

In T 101/17 the novelty objection to be overcome by the auxiliary requests had been in the proceedings already since the filing of the opposition; its framework of facts and arguments had remained unchanged throughout the opposition proceedings. Nonetheless the appellant had restricted its case to defending the patent as granted. The board noted that for reasons of equity in appeal he was restricted to defending the patent in unamended form.

In T 2558/16 the request reverting to the claims as granted which had been filed at the outset of the appeal proceedings could already have been filed in the proceedings at first instance, and so the board had discretion not to admit it. Nevertheless, in exercising this discretion under Art. 12(4) RPBA 2007, account had to be taken of the specific circumstances of the individual case (see T 28/10) and, here, especially of events during the opposition proceedings. The board considered, in particular, that the request was a promising attempt to overcome all the opposition division's objections to the request dealt with in the contested decision. On the topic of "Reverting to broader claims, especially those as granted", see also chapter V.A.5.12.14.

In T 2455/18 a large number of new requests were filed with the statement of grounds of appeal. Some of these requests could be seen as a reasonable response to the first-instance decision, while for others this seemed questionable. The board considered the criterion of procedural economy and efficiency when exercising its discretion under Art. 12(4) RPBA 2007 and explained that, in a case such as this one, it could be easier to admit all requests, instead of giving reasons for each individual request why it was or was not to be admitted.

f) Tidying up claims examined by the opposition division

The appeal proceedings do not have the purpose of starting a new examination of different subject-matter, in particular where such subject-matter involves the broadening of claims considered by an opposition division (T 144/09, T 1616/10).

Also in T 1616/10 the main request and auxiliary request 1 were not admitted into the proceedings, because claim 1 was broader than all requests underlying the appealed decision and the requests could have been filed in first-instance proceedings.

In T 1719/13 the auxiliary request corresponded to auxiliary request 1 found allowable by the opposition division, except for the addition of dependent claim 5. The board referred to the consistent case law that the opposition proceedings may not be used to tidy up the patent by adding one or more dependent claims; such an addition was normally inadmissible under R. 80 EPC (see for instance T 993/07). By the same token, the board considered the addition of one or more dependent claims in appeal proceedings to a claim request held allowable by the opposition division to be an attempt to tidy up the allowable claim request and thus not admissible under Art. 12(4) RPBA 2007.

See also the decisions reported in chapters V.A.5.11.3e) "Requests which could have been presented at first instance", V.A.5.11.3i) "Resubmission of requests withdrawn at opposition stage" and V.A.5.12.14 "Reverting to broader claims, especially those as granted".

g) Requests admitted – appropriate and timely reaction

According to established case law on Art. 12(4) RPBA 2007, amendments, including amended requests, are usually admitted into appeal proceedings if they are justified by the normal development of the proceedings or can under the circumstances be considered a normal reaction of a losing party (T 1072/98, T 540/01, T 848/09, T 2485/11, T 618/14).

In T 848/09 the board considered the filing of the present main request to be a legitimate and normal reaction to the decision to revoke the patent, because the amendment concerned the addition of a feature of a dependent claim which further limited the subject-matter. Moreover, the request was filed at the earliest possible stage of the appeal proceedings, namely with the statement of grounds (see also T 881/09). Even if, theoretically, the patent proprietor might have been able to file this request at the end of the oral proceedings before the opposition division, the board considered the situation to be different from T 144/09, since it did not appear that the patent proprietor made a "considered and deliberate choice" not to file the request. Rather, the reasons for the revocation of the patent were not so explicitly known as in case T 144/09 and plausibly the formulation of a suitable new request was not immediately evident.

In T 134/11 the board observed that the mere fact that a request could have been filed in the first-instance proceedings as such does not lead automatically to the inadmissibility of this request (as in this case there would be no discretionary power of the board). On the contrary, normally such a request is inadmissible only in exceptional circumstances. For

example, such circumstances may arise where, by the filing of a request only at the appeal stage, a decision by the opposition division on certain issues is avoided and the decision is shifted to the second instance (this is referred to as "forum shopping" in decision T 1067/08). In the case at issue it was credible that it was not the appellant's intention to avoid any decision of the opposition division on the current main request. Furthermore the current main request did not raise any new issues but represented merely a continuation of the approach chosen by the appellant all through the first-instance opposition proceedings. The board held that this finding was not at variance with decisions T 144/09 and T 936/09.

In T 2485/11, the appellant had filed an amended main request and an auxiliary request during first-instance proceedings in an attempt to overcome objections of lack of novelty and inventive step raised in the notice of opposition. At the oral proceedings, the opposition division concluded that the amended requests did not comply with Art. 123(2) EPC. The appellant, unlike in T 144/09 and T 936/09, took the opportunity offered to it and filed further requests modifying the amendments in the main request, in order to overcome the opposition division's objection under Art. 123(2) EPC. The fact that, after these requests had also been considered to contravene Art. 123(2) EPC, the appellant did not file a further request could not be regarded as an abuse simply because, theoretically, it could have filed amendments. Hence, given the circumstances of the case, the appellant's submission of auxiliary requests 1 to 5 was considered to be a normal and legitimate reaction of a losing party (see also similar case T 2244/11).

In T 1226/12, when exercising its discretion, the board took into account the fact that the opposition division had made the decision under appeal without a prior communication and any oral proceedings.

In T 1311/17 the auxiliary request at issue was admitted under Art. 12(4) RPBA 2007 because the appellant (proprietor) had not received a clear indication during the first-instance written proceedings that the added-matter objection, which had been the opposition division's sole reason for revoking the patent, was a key issue for the validity of the granted claims.

h) Requests not admitted by the opposition division

In T 411/17 the second auxiliary request was identical to the second auxiliary request dealt with in the decision under appeal. The opposition division had not admitted that request on the grounds that it was late filed and that the new feature g) did not correspond to anything in a dependent claim of the patent as granted. The board observed that the request had been filed one year ahead of the oral proceedings at first instance and that, apart from feature g), claim 1 of this request corresponded to a combination of claims 1, 8 and 9 as granted, a combination against which the opponent had at no point in time raised objections. The board therefore considered that the opponent had had sufficient time to prepare for the subject-matter of this request. In view of these considerations, the board, exercising its own discretion under Art. 12(4) RPBA 2007, decided to admit the second auxiliary request into the appeal proceedings. However, when assessing R. 103(1)(a) EPC, the board came to the conclusion that the opposition division, when

exercising its discretion, had applied the proper principles on the basis of the correct facts and in a reasonable way (G 7/93, OJ 1994, 775).

In T 43/16 the board concluded that the opposition division had exercised its discretion improperly in refusing to admit the main request and admitted it on appeal under Art. 12(4) RPBA 2007.

i) Resubmission of requests withdrawn at opposition stage

Under Art. 12(4) RPBA 2007, a board of appeal has discretion to refuse to admit requests which could have been presented or were not admitted in the first- instance proceedings. In the boards' view, this applies all the more to requests that were filed and subsequently withdrawn during the first-instance proceedings, since such a course of events clearly shows that these requests could have been presented in those proceedings. The purpose of an appeal is to review what was decided at first instance and, as a logical consequence, not what was not decided (T 528/93, T 1186/06, T 390/07, T 1587/07, T 361/08, T 340/10, T 1525/10, T 140/12, T 1689/12). See also the decisions reported in chapter V.A.5.12.14 "Reverting to broader claims, especially those as granted". Withdrawing a request must be distinguished from abandoning it. A request which has been withdrawn can, in principle, if admitted by the department or board hearing the case, be reintroduced to the proceedings, whereas a request which has been **abandoned** cannot be resubmitted at a later stage (T 926/12).

According to T 1695/14, requests could be withdrawn either explicitly or implicitly, the latter being when the circumstances left no doubt that a party no longer wished to pursue them (see T 388/12, T 52/15). Procedural law provided for current and withdrawn requests, but not for ones on hold.

A criterion often applied by boards when exercising their discretion in this context was whether the withdrawal of the request had prevented the department of first instance from giving a reasoned decision on the critical issues, thereby compelling the board either to give a first ruling on those issues or to remit the case to the department of first instance (e.g. T 495/10, T 679/09, T 1855/16).

(i) Request not admitted by the board

In T 679/09 while the appellant may not have intended to avoid a decision of the opposition division on the admissibility of inter alia auxiliary request III, this was the inevitable result of its withdrawal (T 495/10, see also T 933/04, T 1067/08, T 935/12, T 1697/12).

In T 1525/10 the board stated that it is incumbent on both the EPO and users of the European patent system who are parties to proceedings before it to act in good faith. A proprietor who files auxiliary requests by which it delimits the framework of the opposition proceedings and then deliberately withdraws them in order to avoid any adverse decision being reached infringes this general principle by seeking to introduce these requests into appeal proceedings.